

IN THE HIGH COURT OF JHARKHAND AT RANCHI
A.B.A. No.428 of 2020

1. Bharat Rana @ Bharat Mistri		
2. Laxman Giri @ Lakshman Giri	...	Petitioners
Versus		
The State of Jharkhand	...	Opposite Party

CORAM: HON'BLE MR. JUSTICE ANIL KUMAR CHOUDHARY

For the Petitioners	: Mr. Arpit Kumar, Advocate
For the State	: Mr. R.P. Singh, Addl. P.P.

Order No.02 Dated- 28.01.2020

Apprehending their arrest, the petitioners have moved this Court for grant of privilege of anticipatory bail in connection with Complaint Case No.569 of 2018 registered under sections 41/42 of the Indian Forest Act, 1927, Rule 5/10 of Bihar Wood Regulation Act, 1990, Rule 3/4/7 of Bihar Wood Regulation Act, 1993 and Rule 4 of Jharkhand Wood Regulation Act, 2004.

Heard the learned counsel for the petitioners and learned Addl. P.P. for the State.

The Learned counsel for the petitioners submits that the allegation against the petitioners is that the petitioners were running the saw mill inside the forest area and they fled away on seeing the forest officials. It is further submitted that the allegation against the petitioners are all false. It is next submitted that the petitioners have no criminal antecedent as has been mentioned in paragraph no. 17 of the anticipatory bail application. It is then submitted that the petitioners are ready and willing to furnish sufficient security including cash security and undertake that they will not enter inside the forest area during the pendency of the case. Hence, it is submitted that the petitioners be given the privilege of anticipatory bail.

Learned Addl. P.P. opposes the prayer for grant of anticipatory bail.

Considering the submissions of the counsels and the fact as discussed above, I am of the opinion that it is a fit case where the

above named petitioners be given the privilege of anticipatory bail. Hence, in the event of their arrest or surrender within a period of four weeks from the date of this order, they shall be released on bail on depositing cash security of Rs.10,000/- each and on furnishing bail bond of Rs. 25,000/- (Rupees Twenty Five Thousand) each with two sureties of the like amount each to the satisfaction of learned S.D.J.M., Koderma, in connection with Complaint Case No.569 of 2018 with the condition that the petitioners will not enter inside the forest area during the pendency of the case subject to the conditions laid down under section 438 (2) Cr. P.C.

(Anil Kumar Choudhary, J.)

Gunjan-